

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, August 24, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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C10644347	Unifund CCR Partners vs. Simon Garcia
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Order for Appearance and Examination – Simon Garcia

Appearance required. The Court notes that no proof of service has been filed.

22CV-01296	San Tan Heights Homeowners Ass'n vs. Debbie Gavarrete
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Motion for Post Judgment Attorneys' Fees & Costs

Appearance required. Appear to address the issue of valid proof of service.

The Court is uncertain from the conflicting proofs of service whether Defendant is a resident of Arizona or California. If Defendant resides in Ajo, Arizona, there appears to be timely and effective proof of service of the notice of motion and motion and the Court is inclined to grant the unopposed motion pursuant to Code of Civil Procedure section 685.080. If, however, Defendant is a resident of Gustine, California, the Court is inclined to DROP the motion from calendar due to insufficient notice.

The Court notes that on July 29, 2026, and August 5, 2026, Plaintiff filed proofs of service indicating service of the moving papers by U.S. mail on June 9, 2026, from Mesa, Arizona to an address for Defendant in Ajo, Arizona. The Court is uncertain whether the address

in Ajo, Arizona is a valid current address for Defendant because on August 12, 2026, Plaintiff filed a different proof of service indicating service of the moving papers by mail from Mesa, Arizona to an address for Defendant in Gustine, California. A noticed motion under Code of Civil Procedure section 685.080 must be served in accordance with Code of Civil Procedure section 1005 (see Code Civ. Proc., § 1005(a)(13), Cal. Rules of Ct., rule 3.1300(a)). In this case, if Defendant currently resides in Gustine, the notice of motion and motion served by mail from a location outside California on August 12, 2026, were served less than the minimum required 16 court days plus ten calendar days when mailed from a place outside the State of California (see Code Civ. Proc., § 1005(b)).

25CV-00156 Cavalry SPV I, LLC vs. Laura Vargas

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Cavalry SPV I, LLC, for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Laura Vargas is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-01432 Keith Bradshaw vs. Latasha Perez

Order to Appear for Examination (Small Claims) – Latasha Perez

Appearance required.

26CV-01824 Wells Fargo Bank, N.A. vs. Cecilia Soto

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Bank of America, N.A., for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Cecilia Soto is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-02080 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
